

Section 162 provides for punishment for entering a carriage or other place reserved for females.

163. Giving false account of goods. - If any person required to furnish an account of goods under Sec. 66 gives an account which is materially false he and, if he is not the owner also shall, without prejudice to his liability to pay any freight or other charge under any provision of this Act, be punishable with fine which may extend to five hundred rupees every quintal or part thereof of such goods.

Comment

Section 163 lays down punishment for any person furnishing false account of goods on requisition by railway servant.

Estoppel, doctrine does not apply when fraud has been played authorities.- The doctrine of promissory estoppel does not apply when a false certificate has been obtained and fraud has been played on the authorities.

164. Unlawfully bringing dangerous goods on a railways. – If any person, in contravention of Sec. 67, takes with him any dangerous goods or entrusts such goods for carriage to the railway administration, he shall be punishable with imprisonment for a term which may be extended to three years, or with fine which may be extended to one thousand rupees or with both and shall also be liable for any loss, injury or damage which may be caused by reason of bringing such goods on railway.

165. Unlawfully bringing offensive goods on a railway. – If any person, in contravention of Sec. 67, takes with him any offensive goods or entrusts such goods for carriage to the railway administration, he shall be punishable with fine which may extend to five hundred rupees and shall also be liable for any loss, injury or damage which may be caused by reason of bringing such goods on a railway.

Comment

Section 164 and 165 respectively provide for punishment for unlawfully bringing dangerous and offensive goods on a railway.

166. Defacing public notices. – If any person without lawful authority -

- (a) pulls down or willfully damages any board or document set up or posted by the order of a railway administration on a railway or any rolling stock ; or

- (b) obliterates or alters any letters or figures upon any such board or document or upon any rolling stock,

he shall be punishable with imprisonment for a term which may extend to one month, or with fine which may extend to five hundred rupees, or with both.

Comment

Section 166 provides for punishment for defacing public notices on railway.

167. Smoking. – No person in any compartment of a train shall, if objected to by any other passenger in that compartment, smoke therein.

(2) Notwithstanding anything contained in sub-section (1), a railway administration may prohibit smoking in any train or part of a train.

(3) Whosoever contravenes the provisions of sub-section (1) or sub-section (2) shall be punishable with fine which may extend to one hundred rupees.

Comment

Section 167 prohibits smoking in a train when objected to by a co-passenger and provides punishment therefore.

168. Provision with respect to commission of offence by the children of acts endangering safety of person traveling on railway. – (1) if a person under the age of twelve years is guilty of any of the offences under Secs. 150 to 154, the court convicting him may require the father or guardian of such person to execute, within such time as the court may fix, a bond for such amount and for such period as the court may direct for the good conduct of such person.

(2) The amount of the bond, if forfeited, shall be recoverable by the court as if it were a fine imposed by itself.

(3) If a father or guardian fails to execute a bond under sub-section (1) within the time fixed by the Court, he shall be punishable with fine which may extend to fifty rupees.

Comment

Section 168 provides execution of bond for good conduct by the guardian of a person under the age of twelve years in cases of offences mentioned therein.